PRECIOUS KAMBA
and
DELIWE KAMBA
versus
JOSEPHINE MASAWI
and
TAKURA KAMBA
and
LOICE FARIRAI TIGERE
and
THE MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 14, 15, 16, 17 July 2025 & 19 June 2026

Civil Trial-*Declaratur* on the validity of last will and testament

Mr M. Ndlovu with T. Chakabva, for the plaintiff
Mr S.R. Pasvani, for the 1st -3rd defendants

MUSITHU J:

[1] The plaintiffs approached this Court seeking a *declaratur* that the will executed by the late Edwin Benjamin Kamba (the deceased) on 21 July 2015 constituted the deceased's valid last will and testament. The plaintiffs also sought an order declaring the will purportedly executed on 25 July 2017 invalid and of no force or effect on the grounds that it was procured through fraud.

Background to the Plaintiffs' Claim

[2] This matter is concerned about a family dispute arising from the administration of the estate of the deceased and, in particular, the validity of a will purportedly executed by him on 25 July 2017.The plaintiffs, who are daughters of the late deceased, instituted these proceedings challenging the validity of a will purportedly executed by the deceased on 25 July 2017. The first defendant is also a daughter of the deceased and was appointed the executrix under the impugned will. The second defendant is a grandson of the deceased, whilst the third defendant is another daughter of the deceased. The fourth defendant is the

Master of the High Court, cited in his official capacity as the authority responsible for the administration of deceased estates.

[3] The plaintiffs challenged the 2017 will on the basis that it was invalid as the now deceased, at the time of the execution of the will, was said to have been mentally incapable of appreciating the nature and effect of his act, therefore unfit to execute a valid will.

[4] The plaintiffs further alleged that the deceased had for many years abused alcohol to such an extent that he would frequently lose consciousness and pass out in public places. His excessive consumption of alcohol resulted in serious liver complications and cognitive decline, which adversely affected both his physical and mental health, rendering him incapable of understanding the nature and effect of executing a will.

[5] The plaintiffs also averred that the will itself was the product of fraud, duress and undue influence which was exerted upon the testator by the first defendant. The plaintiffs further averred that the first defendant threatened the testator with death through the use of dark arts and black magic. They alleged that the first defendant's tools of trade were kept at the deceased's residence and served as a constant source of intimidation. The plaintiffs also challenged the validity of the will on the basis that it failed to comply with the prescribed formalities in that the witness did not sign the second page thereof.

[6] The plaintiffs also averred that, by reason of the first defendant's alleged conduct, she was disqualified from inheriting any benefit under the will. They further averred that her appointment as executrix was invalid on the basis that at the time of her appointment, she was resident in Ireland and not in Zimbabwe.

[7] The plaintiffs further averred that the deceased had previously executed another will dated 21 July 2015. Following the deceased's death, the fourth defendant advised the plaintiffs that the will dated 25 July 2017 had been accepted as the deceased's valid last will and testament and that the earlier will was not accepted for registration. The plaintiffs objected to that decision and challenged both the validity of the 2017 will and the first defendant's capacity to benefit thereunder and to act as executrix. Their objections were dismissed by the fourth defendant.

[8] Aggrieved by that decision, the plaintiffs approached this Court seeking a *declaratur* that the will of 25 July 2017 was null and void and of no force or effect, and that the deceased's earlier will of 21 July 2015 constituted his valid last will and testament.

The 1st, 2nd and 3rd Defendants' Plea

[9] In their defence, the defendants opposed the plaintiffs' claim and maintained that the will dated 25 July 2017 was validly executed and constituted the deceased's last will and testament. They also denied that, at the time of its execution, the deceased lacked the requisite testamentary capacity or was otherwise incapable of appreciating the nature and effect of executing a will. The defendants also denied that the testator was unfit to execute a valid will.

[10] The defendants further denied the allegations that the deceased abused alcohol and that he had liver complications which affected his mental faculties. They further denied the allegations that the testator had a cognitive decline from drinking alcohol which affected his physical and mental health to such an extent that he was incapable of executing a will.

[11] The first defendant also denied acting fraudulently, or forcing the testator, or unduly influencing the testator or threatening him with death through the use of dark arts and black magic. She further denied the allegation that she owned and kept tools of the dark arts trade at the testator's residence.

[12] The defendants averred that the 25 July 2017 will was validly executed and was accepted by the fourth defendant. The objections raised by the plaintiffs concerning the validity of the will and the first defendant's appointment were duly considered and determined by the fourth defendant. Notwithstanding that determination, the plaintiffs did not avail themselves of the remedies provided at law by noting an appeal against or seeking a review of the Master's decision. The defendants maintained that having failed to challenge the fourth defendant's decision by way of appeal or review, that decision remained extant.

[13] The defendants averred that the first defendant was entitled to inherit in terms of the said will as it was valid. They argued that the first defendant's appointment as the executrix was valid and that that any challenge to her appointment ought to have been properly directed to the fourth defendant. In any event, the first defendant had executed a power of attorney in favour of a person resident in Zimbabwe which made her actions valid.

[14] The defendants also maintained that the will dated 25 July 2017 constituted the deceased's valid will. They further averred that the plaintiffs had previously lodged objections before the fourth defendant concerning the validity of the will and the first defendant's appointment, which objections had been considered and dismissed. Notwithstanding that determination, the plaintiffs had neither appealed against nor sought a review of the fourth defendant's ruling.

[15] The first defendant denied acting *mala fide* and averred that there was no basis for an award of costs against her either on an ordinary scale or punitive scale. The defendants prayed for the dismissal of the plaintiffs' claim with costs.

The Issues

[16] The matter was referred to trial on the following agreed issues as recorded in the amended joint pre-trial conference minute dated 29 May 2025.

a. Which of the wills dated 21st July 2015 and 25 July 2017 is valid?

b. Whether or not the plaintiffs have followed the correct procedure in challenging the decision of the Master declaring the will valid?

The Trial

[17] At the commencement of the trial, *Mr Pasvani*, appearing for the defendants, advised the court that the defendants had made certain amendments to the record to the record of proceedings. In particular, they had filed a supplementary schedule and bundle of documents. Counsel submitted that he had liaised with the plaintiffs' instructing legal practitioner, who had consented to the inclusion of those documents in the record.

[18] In reply, *Mr Ndlovu*, appearing for the plaintiffs, raised an objection to the way the documents were introduced in the record of proceedings. He however, agreed that the documents be included in the record, although he had concerns regarding the regularity of the way the documents were placed before the court in relation to r 47 of the High Court rules, 2021.

[19] *Mr Ndlovu* submitted that documents ought to be produced through the discovery process within a certain period to allow for consultations with clients. Counsel further submitted that he had only been given the new record with the inclusion of the new documents on the day of the trial. Mr *Ndlovu* indicated he would address the issue latter in the proceedings.

[20] *Mr Ndlovu* disputed *Mr Pasvani's* assertion that the plaintiffs' instructing legal practitioner had consented to the filing of the supplementary documents. Counsel maintained that no such consent had been given. He submitted that his instructing attorney never consented to the filing of the documents.

[21] *Mr Ndlovu* drew the Court's attention to an apparent discrepancy between the name reflected in the order referring the matter to trial and that appearing in the joint pre-trial conference minute. Counsel submitted that a case management order was required to regularise the issue.

The Plaintiffs' Case

[22] Evidence in support of the plaintiffs' case was led from two witnesses. These were the first plaintiff Precious Kamba and Kurauone Madzivanyika, a handwriting expert.

Precious Kamba

[23] Her evidence was as follows. She was the youngest daughter of the deceased. Prior to his death in 2019, the deceased had executed a will. The will was prepared and executed at Moyo and Chikono Legal Practitioners and all the requisite formalities, including the affixing of the necessary signatures, were duly complied with. The original will was retained by the legal practitioners for safekeeping.

[24] The decision to lodge the will with the legal practitioners was informed by concerns about the deceased's advanced age and vulnerability and that he would expose his estate to risk. All the four daughters of the deceased were named as beneficiaries under the will and the estate was apportioned amongst them.

[25] Following the deceased's death, the will was submitted to the Master of the High Court for registration. The will dated 21 July 2015 constituted the last will and testament of the deceased. In terms of that will, the deceased had nominated her to serve as executrix of his estate. According to the witness, her understanding of the phrase "I give and bequeath", as used in the 2015 will, was that the deceased intended that the property forming part of his estate be divided equally amongst his four daughters.

[26] When quizzed by counsel for the defendants regarding the different dates appearing on the will, the witness explained that the later date reflected on the document emanated from the stamp of the Master's Office and represented the date on which the will was lodged with

that office. The witness further stated that there existed another will dated 25 July 2017, which had been prepared by the Legal Resources Foundation. Upon being asked to comment on the two documents, the witness maintained that the 2017 was executed by her father. That document did not bear the deceased's signature and, for that reason, could not be regarded as a true representation of his wishes.

[27] According to the witness, the identity number appearing beneath the purported signature of the testator in the 2017 will was not that of the deceased. The identity number was incorrect. The signature appearing on the document also differed materially from the deceased's known signature.

[28] The witness also stated that the 2017 will had been fraudulently procured. In her view, the document did not bear the deceased's signature and the way it was prepared did not align with the law, therefore, it did not represent her father's wishes. The witness further stated that the family only became aware of the existence of the 2017 will after the death their father. Upon learning of its existence, they engaged legal practitioners who, on their behalf, addressed correspondence to the fourth defendant challenging the validity of the will.

[29] The fourth defendant responded to their objection by letter dated 4 December 2020, advising that the 2017 will was accepted as the deceased's valid last will and testament. The witness told the court that her legal practitioners addressed correspondence to the fourth defendant expressing their intention to challenge the will.

[30] The witness also told the court that no executor had been appointed yet at that stage. She stated that as at the date of her testimony, the estate had not yet been wound up.

[31] Under cross examination, the witness conceded that she was not present when the 2015 will was executed. The deceased attended to his legal practitioners personally and signed the will. The witness acknowledged that the 2017 will disinherited both plaintiffs. She however maintained that her concern was not that the will disinherited them, but rather that the signature appearing on the document did not belong to the deceased, and therefore, it did not represent his wishes.

[32] The witness also told the court that at the time of their late father's passing on, she was residing in the United Kingdom. When asked to comment on the correspondence from the

Master indicating that the 2017 will had been lodged by the deceased, the witness averred that the will had been lodged by the first defendant.

[33] When quizzed on the deceased's alleged mental incapacity to execute the will, and whether she had produced any evidence in support of the deceased's alleged incapacity, the witness conceded that she had not adduced any such evidence. She nevertheless maintained that the deceased was too old and vulnerable to appreciate the nature and effect of his acts. She stated that the purpose of engaging a lawyer was to protect the deceased and to enable him to execute the will in the presence of his lawyers.

[34] When questioned by the defendants' counsel regarding the allegation that the deceased was an alcoholic who had suffered cognitive decline and would occasionally lose consciousness in public places, the witness conceded that there were indeed instances when such incidents occurred. Because of the deceased's condition, they had engaged the services of personalised caregivers.

[35] The deceased suffered from numerous medical conditions, including high blood pressure, gout and tuberculosis. Although his death certificate recorded the cause of death as respiratory issues, it did not provide for other past medical ailments he had suffered.

[36] The witness also acknowledged that she had differences with the deceased during the period between 2015 and 2017. She however, maintained that the 2017 will could not be regarded as valid because of the imperfections that she had already highlighted.

[37] The witness maintained under re-examination, that their challenge of the 2017 will was not motivated by anger, but by the desire to ensure that the deceased's true testamentary wishes were respected. She further maintained that to her knowledge, the deceased had never revoked the 2015 will and that no record of such revocation existed.

Evidence of Kurauone Madzivanyika

[38] The second witness was Kurauone Madzivanyika, a forensic document examiner specialising in handwriting and signature analysis with four years of experience. He gave evidence as an expert witness. His evidence was as follows. Upon examining the signatures appearing on the 2015 and 2017 wills, he concluded that there were material differences between them. In the field of forensic document examination, they analysed individual characteristics to determine authorship rather than general characteristics.

[39] In conducting his examination and comparison of the signatures appearing on the two wills, he treated the 2015 will as the standard sample document, while the 2017 will was the questioned document. In addition, he also received from the plaintiffs' legal practitioners, three sample documents, which he referred to as the comparison material. His objective was to establish whether the signature appearing on the 2017 will was indeed that of the deceased.

[40] After analysing the standard sample document and the questioned document, the witness concluded that the person who authored the 2015 will was not the same person who authored the 2017 will. He reached this conclusion because the individual characteristics appearing on the signatures of the 2015 will were different from those that appeared on the 2017 will. In arriving at his conclusion, the witness stated that he compared the 2015 will with three signatures provided both from original documents and scanned documents The witness claimed that he used the 2015 will as the sample document because it was not disputed.

[41] Under cross examination, the witness told the court that he used the 2015 will as the sample document after being advised by the plaintiffs' legal practitioners that it was not disputed. Asked to comment on what steps he takes to verify if a document is not being disputed, the witness stated he did not take any steps to make any verification, but rather he relied on the word of whoever gave him the mandate. He acknowledged that if he was furnished with other documents over and above the standard sample document that there was a chance that he could change his opinion.

[42] The witness also stated under cross examination that he had only examined the 2015 will with three signatures as his standard sample signature. His examination was based on scanned copies that he was furnished by the plaintiffs' lawyers.

[43] The witness also conceded under cross examination that the quality of the document could also possibly affect an examiner's findings. There was also a possibility that a person's signature could change over time. It was also possible for one person to have more than one signature.

[44] In concluding his evidence under cross examination, the witness stated that his opinion was definitive and not probable. He explained that in his field of expertise, individual handwriting characteristics remained unique to a writer even if one had several signatures.

The defendants' case

[45] The defendants led evidence from the first defendant, Josephine Masawi, one of the deceased's daughters, and the second defendant, Takura Kamba, a grandson of the deceased.

The evidence of Takura Kamba

[46] His evidence was a s follows. He was a grandson of the deceased. He stayed with the deceased from 2018 until 2020, during which time the lived together on their own. The witness described the late Edwin Kamba as physically fit and during the period that he stayed with the deceased, he observed nothing that suggested any impairment of the deceased's mental faculties. He denied the assertion that the deceased lacked the mental capacity to execute a will. He averred that the deceased was mentally alert and well informed about current affairs during the period they stayed together.

[47] The witness first became aware of the existence of the 2017 will sometime in 2020. According to the witness, the deceased showed him a copy of his will and a Doves Funeral Policy. From around 2016, the deceased began receiving messages from the plaintiffs accusing him of bewitching them. The deceased became distressed by those accusations and, over time, reached a point where he avoided communicating with the plaintiffs.

[48] At one point, the first plaintiff allegedly warned the witness that if he continued to reside with the deceased, he would be left with a goblin, but the witness ignored the message. Sometime in 2017, the plaintiffs arranged for an individual identified as William Ndarawashe to visit the deceased's residence for the purpose of cleansing the place and removing what were believed to be goblins.

[49] On one occasion, the plaintiffs visited the deceased without prior notice and an altercation ensued between them and the deceased. The plaintiffs confronted the deceased and questioned why he was still alive when others of his age had already passed away.

[50] Following the plaintiffs' challenge of the 2017 will, the defendants instructed legal practitioners to make enquiries with the fourth respondent regarding the status of the will. The fourth respondent determined that the 2017 will was valid and that it had been lodged by the deceased himself. After the deceased's death, the witness informed the deceased's

relatives of the existence of the 2017 will. The deceased's relatives advised him to have the estate registered with the fourth defendant and he proceeded to do so.

[51] Under cross-examination, the witness admitted that he could not challenge the findings of the handwriting expert. He nevertheless maintained that he did not accept the existence or validity of the alleged 2015 will. The witness only became aware of the existence of the 2015 will during the current proceedings. Despite becoming aware of the document, he had not taken any steps to challenge its authenticity or validity.

The evidence of Josephine Masawi

[52] The evidence of this witness did not materially differ from that of the previous witness. She stated that although she stood to benefit under both the 2015 and 2017 wills, her involvement in the proceedings was motivated by a desire to uphold and give effect to what she understood to be her late father's wishes.

[53] The witness denied the allegations made against her that she was engaged in witchcraft. She did not subscribe to such practices because she was a Christian. Under cross-examination, the witness acknowledged that she was not familiar with the deceased's personal habits. She nevertheless maintained that the will dated 25 July 2017 constituted the deceased's last will and testament and it was valid.

The plaintiffs' closing submissions

[54] The plaintiffs submitted that the first defendant made a vital concession during her testimony regarding the existence of the 2015 will. This position was inconsistent with the defendants' plea, the summary of evidence of Takura Kamba and his testimony in which the existence and validity of the 2015 will had been disputed. The first defendant's acknowledgment of the 2015 will constituted a material admission that effectively resolved the dispute before the court.

[55] The plaintiffs referred to the evidence of the expert witness' who demonstrated how he reached the conclusion that the signature in the 2017 will was forged. That, according to the plaintiffs, confirmed the validity of the 2015 will. The plaintiffs urged the court to admit the evidence of the expert witness. The court was referred to the cases of *Menday v Protea Assurance Co. Ltd* 1976 (1) SA 565 at 569B-C and *British American Tobacco Zimbabwe v Jonathan Chibaya SC* 30-19. On the evidence, the plaintiffs' counsel submitted that the expert witness' testimony was compelling and remained unshaken under cross-examination.

No evidence was led in rebuttal of the expert witness's evidence, and for that reason it had to be taken as uncontested.

[56] The plaintiffs also submitted that based on the evidence placed before the court, the will of 21 July 2015 constituted the deceased's last will and testament and that the purported will of 25 July 2017 ought to be declared null and void. The plaintiffs further submitted that the procedure adopted in bringing the matter before the court was irrelevant. This was because the issue before the court was concerned with the validity of the wills.

[57] The plaintiffs also submitted that the first defendant's testimony was inconsistent with her pleadings. In their plea, the defendants had not accepted the existence or validity of the 2015 will, yet during the trial the first defendant acknowledged its existence. It was also submitted that little weight ought to be attached to the evidence of Takura Kamba. His evidence was hearsay.

[58] The plaintiffs also submitted that the validity of the 2015 will was effectively uncontested. The defendants had not filed any counterclaim to impeach the validity of that will.

[59] The plaintiffs submitted that the letter from the fourth defendant did not resolve the question of validity of the 2017 will. The 2015 will was compliant with s 8 of the Wills Act.[1]

[60] In conclusion, the plaintiffs urged the court to declare the will dated 25 July 2017 null and void *ab initio* and to hold that the will dated 21 July 2015 constituted the deceased's valid last will and testament. The plaintiffs also sought an order of costs against the first to third defendants.

1st, 2nd and 3rd defendants' closing submissions

[61] The defendants submitted that the plaintiffs had adopted the wrong procedure in challenging the fourth defendant's decision of accepting the will dated 25 July 2017, as the deceased's valid last will and testament. They argued that, in terms of s 8(6) of the Wills Act, *"any person aggrieved by a decision of the Master may appeal to an appropriate court within thirty days of being notified of the decision of the Master"*.

[1] [Chapter 6:06]

[62] The defendants submitted that the plaintiffs were notified of the fourth defendant's decision on 11 December 2020 but only instituted these proceedings on 17 March 2021, well outside the statutory period. The plaintiffs ought to have made an application for condonation and extension of time.

[63] The defendants relied on several authorities in support of their submission that compliance with the prescribed time limits was mandatory and that a failure to act within such period was fatal to the proceedings. The defendants also averred that, having failed to appeal timeously or seek condonation, the plaintiffs were not properly before the court and that the matter ought to be struck off the roll with costs.

[64] The defendants also submitted that the plaintiffs failed to discharge the onus of proving any of the grounds upon which they sought to impeach the 2017 will. It was argued that no medical evidence, expert medical testimony, or evidence from persons present at the time of execution was led to establish that the deceased lacked testamentary capacity. They did not lead any evidence to suggest that the deceased was under psychiatric care, had suffered from dementia, or was incapable of understanding the nature of a will. The second defendant had testified that the deceased was a man who remained lucid, capable and careful in his decision making.

[65] The defendants further contended that the allegations of fraud, duress, undue influence, witchcraft and black magic made against the first defendant were wholly unsubstantiated. The defendants submitted that undue influence must be proved on a balance of probabilities and cannot be inferred merely because a will benefited certain beneficiaries over others. They submitted that, in the absence of evidence of undue influence, the court ought to uphold the testator's freedom to dispose of his estate as he wished.

[66] It was submitted that the evidence led showed that the testator executed and lodged the will himself. In relation to the forensic evidence, the defendants submitted that little weight ought to be attached to the handwriting expert's opinion. They argued that the issue of the signature had not been specifically pleaded by the plaintiffs and was therefore not properly before the court. They further contended that the expert witness's conclusions were based on photocopied and scanned documents, they were also subject to revision upon receipt of further material and were reached without consideration of the deceased's advanced age and the possibility of changes in handwriting over time.

[65] The defendants also submitted that the expert witness improperly treated the 2015 will as an undisputed standard sample notwithstanding that its authenticity was disputed. The defendants further submitted that the court should prefer the direct evidence of witnesses and the documentary evidence emanating from the fourth defendant's office over the expert opinion. Reliance was placed on correspondence from the fourth defendant which showed that the 2017 will had been lodged by the deceased himself during his lifetime. Counsel argued that it was highly improbable that a testator would personally lodge a document which he knew to be forged. On that basis, it was submitted that the evidence supported the conclusion that the 2017 will originated from the deceased and reflected his testamentary wishes.

[66] The defendants further argued that the 2017 will complied with all the formal requirements of a valid will. The defendants' counsel contended that even if the court were to accept that the 2015 will had been validly executed, it was subsequently revoked by the later will. It was submitted that the plaintiffs had not proved any of the grounds upon which they sought to impeach the 2017 will. They had failed to show fraud, undue influence, or mental incapacity. Accordingly, the defendants urged the court to uphold the validity of the will dated 25 July 2017 and dismiss the plaintiffs' claim with costs.

Analysis

[67] The first issue arising for determination is whether the plaintiffs were properly before the court in light of the provisions of s 8(6) of the Wills Act[2] and the undisputed fact that they instituted these proceedings outside the thirty-day period stipulated therein.

[68] The defendants raised a legal objection that the plaintiffs had adopted the incorrect procedure in challenging the fourth defendant's decision of accepting the will dated 25 July 2017. It was submitted that the plaintiffs ought to have noted an appeal in terms of s 8(6) of the Wills Act within thirty days of being notified of the fourth defendant's decision and that their failure to do so rendered the present proceedings incompetent. Section 8(6) of the Wills Act provides that:

> "Any person who is aggrieved by a decision of the Master may appeal to an appropriate court within thirty days of being notified of the decision of the Master."

[69] The defendants submitted that the plaintiffs were notified of the fourth defendant's decision on 11 December 2020 but only instituted these proceedings on 17 March 2021.

[2] [*Chapter 6:06*]

Closely related to the foregoing issue is the question whether, properly construed, the present proceedings constituted an appeal against the fourth defendant's decision or whether they amounted to an independent challenge to the validity of the will itself.

[70] In paragraph 12 of their declaration, the plaintiffs pleaded that the fourth defendant accepted the will dated 25 July 2017 and dismissed their objections to its validity. More significantly, in paragraph 13 they made it very clear that their claim was a challenge to the fourth defendant's decision. They expressly averred that:

> "The Plaintiffs aver that the former will is the valid will of the Testator and that it be accepted as such, and hereby contest the 4th Defendant's decision."

[71] The same position was maintained in their replication when the defendants raised an objection that the plaintiffs had not challenged the fourth defendant's decision. The defendants stated the following:

> "This is denied. Defendants aver that the will dated 25th July 2017 is the valid will. Defendants further state that the plaintiffs have made objections with the 4th Defendant and a ruling was made which they have neither taken on appeal nor review."

[72] In the replication, particularly in para 10 the plaintiffs remarked that:

> "This is denied. Plaintiffs aver that the current proceedings challenge the validity of the 4th Defendant's ruling and therefore constitute an appeal against 4th Defendant's decision."

[73] The averment is significant to the determination of the preliminary objection. The plaintiffs expressly pleaded in their replication that they were contesting the decision of the fourth defendant. In determining the true nature of the present proceedings, the court is not confined to the relief sought by the plaintiffs. The court must examine the substance of the cause of action disclosed by the pleadings. In *Medlog Zimbabwe (Pvt) Ltd* v *Cost Benefit Holdings (Pvt) Ltd* 2018 (1) ZLR 449(S) at 455G- 456E the court held that:

> "In general, the purpose of pleadings is to clarify the issues between the parties that require determination by a court of law."

[74] Pleadings serve not only to define the issues for determination but also to disclose the cause of action upon which a litigant relies in support of their claim. It is therefore from the pleadings that a court identifies the factual and legal basis of the claim and determines its true nature. In *Shinga v General Accident Insurance Co (Zimbabwe) LTD* 1989 (2) ZLR 268 (HC) the learned judge cited the remarks in *Abrahamse & Sons v SA Railways and Harbours* 1933 CPD 626, wherein the court defined the term cause of action as follows:

> "The proper legal meaning of the expression 'cause of action' is the entire set of facts which give rise to an enforceable claim and includes every fact which is material to be proved to entitle a plaintiff to succeed in his claim. It includes all that a plaintiff must set out in his declaration in order to disclose a cause of action. . ."

[75] Similarly, in *Peebles v Dairiboard (Private) Limited* 1999 (1) ZLR 41 (H) at 54E-F the court adopted the classic definition in *Read v Brown* (1888) 22 QB 131 that:

> "A cause of action comprises every fact which it would be necessary for the plaintiff to prove if traversed in order to support his right to the judgment of the court."

[76] Applying these principles to the present matter, the court must ascertain from the plaintiffs' pleadings the factual foundation upon which the relief sought is based. A careful reading of the amended declaration reveals that the plaintiffs' complaint arose only after the fourth defendant accepted the 2017 will and dismissed their objections in respect thereof. The plaintiffs' case as pleaded is therefore not merely against the existence of a competing will, but also against the fourth defendant's decision recognising that will as valid. In *Keavney & Anor v Msabaeka Bus Services (Pvt) Ltd* 1996 (1) ZLR 605 (S), at page 608 C, MCNALLY JA (as he then was) citing the remarks by MULLINS J in *Nieuwoudt v Joubert* 1988 (3) SA 84 (C) stated the following:

> "A pleader cannot be allowed to direct the attention of the other party to one issue, and then at the trial attempt to canvass another,"

[77] The learned judge further cited with approval the remarks by Milne J (as he then was) in *Kali v Incorporated General Insurance Ltd* 1976 (2) SA 179 (D) at 182 A;

> "The purpose of pleadings is to define the issues, and to enable the other party to know what case he has to meet' See also DD Transport (Pvt) Ltd v Abbot 1988 (2) ZLR 92 (S) at 101F-G."

[78] In the closing submissions, the plaintiffs sought to minimise the significance of the procedural objection. They submitted that the issue of procedure was irrelevant and that the only question requiring determination was whether the 2015 will or the 2017 will constituted the deceased's valid last will and testament. With respect, that submission ignores the foundation upon which the plaintiffs themselves elected to construct their case. The court cannot disregard the pleaded cause of action and proceed as though the matter had been brought on an entirely different basis.

[79] Having pleaded that the proceedings constituted a challenge to the fourth defendant's decision, the plaintiffs cannot now be heard to argue that the issue of the procedure adopted was of no consequence. Before a court can proceed to determine the merits of a dispute, it must first be satisfied that the matter was brought before it through the procedure prescribed

by law. It is the court's view that a party cannot escape the consequences of its own pleadings merely because those consequences later prove inconvenient.

[80] The plaintiffs sought to rely on s 14 of the High Court Act, which empowers this court to grant declaratory relief in appropriate circumstances. There can be no dispute that the plaintiffs, as daughters of the deceased and persons claiming an interest under the 2015 will, possess a direct and substantial interest in the matter. However, the issue is not whether the plaintiffs satisfied the requirements of *locus standi* in declaratory proceedings. The issue is whether a litigant who expressly pleads that he is contesting a decision of the Master of High Court may circumvent the appeal procedure specifically prescribed by the Wills Act and instead seek substantially the same relief through a *declaratur*.

[81] I find the observation of the court in *Dhliwayo & Ors v Bere N.O. & Ors* HH 164-24, apposite. The court cautioned against the use of a *declaratur* as a mechanism to circumvent statutory procedures and time limits applicable to a particular cause of action. The court stated that:

> "The challenge to the validity of a will that has been accepted by the Master is itself time bound in terms of s 8 (6) of the Wills Act.
> Put differently, the substance of the claim that gives rise to the quest for a *declaratur* is a necessary starting point in determining whether the quest for a *declaratur* has also prescribed. If upon examining the nature of the claim, it emerges from its holistic substance that it is one which ought to have been and could have resolved through prescribed channels, then if the time limit for pursuing the matter through those channels has prescribed so would the quest for a *declaratur*. The quest for a *declaratur* cannot, simply put, be divorced from the causa as to do so would indeed create a situation where those who have done nothing about their claim resort to using the *declaratur* as a back door to seeking coercive relief which they could have sought within the prescribed time limits." *My emphasis*

[82] The existence of a general power to grant declaratory relief under s 14 of the High Court Act cannot be interpreted so as to render nugatory a specific statutory remedy created by Parliament. Where legislation creates a particular procedure for challenging a decision, litigants are ordinarily required to pursue that remedy. To hold otherwise would permit parties to bypass statutory time limits simply by recasting appeals as applications for declaratory relief.

[83] The plaintiffs' own pleadings reveal that the genesis of the dispute, was the fourth defendant's determination. In my view, that determination gave rise to the present proceedings. It follows that the cause of action pleaded is inseparable from the decision of the fourth defendant and falls squarely within the ambit of s 8(6) of the Wills Act.

[84] It is significant to note that the plaintiffs were at all material times aware of the fourth defendant's decision and actively disputed it. Their own evidence established that correspondence was exchanged with the fourth defendant concerning his acceptance of the 2017 will. The plaintiffs therefore knew of the decision that they regarded as erroneous and had a statutory remedy available to them. Having elected to challenge the fourth defendant's decision, the plaintiffs were obliged to comply with the procedure prescribed by the Act. However, no explanation was advanced for the failure to invoke that remedy within the period stipulated by the Act.

[85] In the result, I am persuaded that the plaintiffs' own pleadings characterized these proceedings as a challenge to the fourth defendant's decision. Having elected to frame their case in that manner, they were obliged to comply with the procedure prescribed by s 8(6) of the Wills Act.

[86] Accordingly, the plaintiffs' assertion that the present proceedings constituted a challenge to the fourth defendant's decision was fatal to their claim. The matter was not brought in accordance with the procedure prescribed by the Wills Act and, on that basis alone, the claim cannot succeed. Having failed to do so, and having failed to seek condonation for that failure, the plaintiffs are not properly before this court.

[87] In the circumstances, the preliminary objection succeeds. It therefore becomes unnecessary for this court to determine the merits of the matter concerning the validity of the wills dated 21 July 2015 and 25 July 2017.

Costs

[88] Costs follow the event. I find no reason to depart from the general principle of the law by awarding costs of suit to the defendants as the successful party.

Resultantly, it is ordered that

1. The plaintiffs' claim is hereby struck off the roll for being improperly before the court.
2. The plaintiffs shall bear the first, second and third defendants' costs of suit jointly and severally, one paying the other to be absolved.

MUSITHU J: ……

Kwenda & Chagwiza Attorneys, legal practitioners for the plaintiffs
Mutizwa, Muhlanga & Nemaramba, legal practitioners for the 1st, 2nd and 3rd defendants